Execution Version

GROUND LEASE

FOR REAL ESTATE PARCEL EC-2C

BETWEEN

CHICAGO TITLE LAND TRUST COMPANY, AS TRUSTEE UNDER A TRUST AGREEMENT DATED DECEMBER 1, 2007, AND KNOWN AS TRUST NO. 1114334, as Lessor

AND

NORTH SHORE ICE ARENA, LLC, as Lessee

DATED AS OF: December 1, 2007

This document was prepared by:

Schiff Hardin LLP
6600 Sears Tower
233 South Wacker Drive
Chicago, Illinois 60606

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GROUND LEASE

This Ground Lease is dated as of December 1, 2007 ("**Effective Date**") and is between **CHICAGO TITLE LAND TRUST COMPANY**, not personally but as Trustee under a Trust Agreement dated December 1, 2007, and known as Trust No. 1114334 ("**Lessor**"), and **NORTH SHORE ICE ARENA, LLC**, an Illinois limited liability company ("**Lessee**").

RECITALS

A. Lessor is the owner of certain Premises (as defined in Section 1.1); and

B. Lessor desires to lease the Premises to Lessee and Lessee desires to lease the Premises from Lessor on the terms and conditions herein set forth.

ACCORDINGLY, Lessor and Lessee hereby agree as follows:

ARTICLE 1

Premises and Term

1.1 **Premises; Term; Renewal Option.** In consideration of the Rent (hereinafter defined) to be paid and the terms, covenants, conditions, agreements and obligations to be performed and observed by Lessee as herein provided, Lessor does hereby demise and lease to Lessee, and Lessee does hereby take and hire, the Premises, which consist of that certain tract of vacant land, comprised of approximately five (5) acres, located in the Village of Northbrook, Cook County, Illinois (commonly referred to by the Techny Land Committee as Parcel EC-2C and legally described on Exhibit A attached hereto and made a part hereof ("**Land**"), subject to the terms of this Lease and the title exceptions listed on Exhibit B attached hereto and made a part hereof and to any interests or acts of Lessee or anyone claiming or acting by, through or under Lessee, together with Lessor's right, title and interest, if any, in and to (i) all public or private infrastructure improvements which may now or hereafter be located thereon, and (ii) all of Lessor's interest in any private easements, rights of way or other improvements appurtenant thereto, (iii) all privileges, rights, easements, hereditaments, and appurtenances thereunto belonging, and (iv) all right, title and interest of Lessor in and to any streets, passages and other rights of way included therein or adjacent thereto (collectively, "**Appurtenant Rights**"), to have and to hold unto Lessee for and during an initial term of sixty (60) years, seven (7) months and four (4) days ("**Initial Term**"), commencing on January 28, 2008 ("**Commencement Date**") and expiring on the Expiration Date, with two (2) options to renew said Initial Term as hereinafter provided, unless sooner terminated on such date as may be provided in Section 17.3.1 or elsewhere in this Lease ("**Termination Date**"). Provided no Default that has not been cured then exists on the part of Lessee under this Lease, Lessee shall have the option to renew the Initial Term of this Lease for two (2) additional terms of ten (10) years each (each a "**Renewal Term**") and will be exercisable by notice from Lessee to Lessor of Lessee's intent to renew this Lease given no later than August 31, 2066 for the first Renewal Term commencing September 1, 2068 and August 31, 2076 for the second Renewal Term commencing September 1, 2078, which notice shall, automatically and without any further act on the part of either party, invoke the provisions of Section 3.1.5 for purposes of determining the Base Rent payable during such

Renewal Term. Except for the Base Rent payable during the Renewal Terms, which shall be determined as provided in Section 3.1.5 below, all of the other terms and conditions that are provided for in this Lease shall remain in full force and effect during the Renewal Terms. If Lessee fails to give such notice on or before August 31, 2066, for the first Renewal Term, or by August 31, 2076 for the second Renewal Term, or if a Default that has not been cured on the part of Lessee under this Lease as of either such date, then this Lease shall expire by its own terms automatically and without any further action on the part of either party as of the date that would be the natural Expiration Date of the then current Term, unless otherwise agreed in writing by Lessor and Lessee.

1.2 **Public Areas; Reservation of Rights**.

1.2.1 Excluded Areas; Right to Use. Lessor has not and does not demise to Lessee any space under, on or above the public roads and other public areas adjoining the Premises (collectively, "**Environs**"), but Lessor hereby grants to Lessee, during the Term of this Lease and subject to all the provisions hereof, such rights to use such of the Environs as Lessor now or hereafter may own or enjoy; and Lessee shall indemnify Lessor and save Lessor harmless from and against all claims by any public authority or any other party for compensation or damages by reason of the use or occupation of, or intrusion on, above or under the Environs by Lessee or anyone using, entering upon or occupying the Premises by, through or under Lessee.

1.2.2 Lessor's Reserved Rights. Lessor has reserved and hereby continues to reserves unto itself, its successors and assigns, (i) all mineral rights below the surface of the Land, (ii) all air rights (including, without limitation, the right to proceeds from condemnation or eminent domain proceedings related to such rights) above a horizontal plane beginning at a height twenty-five feet above the maximum height of the tallest of the building or buildings or other structures permitted to be constructed by Lessee pursuant to this Lease, and (iii) the right to dedicate to the Village (and Lessee agrees to join therein if necessary and to cause its Leasehold Mortgagee to consent thereto, if required by Lessor, the Village or any title insurance company) any easements not granted prior to the date of this Lease for the bike path intended to be installed along the eastern perimeter of the Premises adjacent to the Founders Drive right-of-way as generally depicted on Exhibit O (subject to any necessary modifications as required by the Village) and any pubic utilities required to serve any other portions of the Techny Land in the same vicinity as the bike path easement or in other locations compatible with Lessee's Approved Plans to be constructed at the expense of a party other than Lessee. Further, Lessor reserves the right to make any dedications in the future (as expressly provided in Section 1.4 below) to the appropriate Governmental Authority and required in connection with the Initial Project, any Added Component or any Redevelopment Plan. The foregoing reservation of rights shall not be construed to permit Lessor: (1) to build any structures or improvements of any type over any portion of the Land (whether or not occupied by buildings or other improvements) during the Term of this Lease, or (2) during the Term hereof, to extract minerals from under the surface of the Land without Lessee's prior written consent, which consent shall not be withheld unless Lessee reasonably determines that the extraction of minerals by Lessor (including the processes related thereto and the installation or use of equipment used in connection therewith) will materially interfere with or adversely affect Lessee's use of the Premises or the value of the Land, the Building or the other Improvements taking into account, among other things, the

marketability of Lessee's Buildings, insurance requirements, aesthetics, safety and such other factors as Lessee may reasonably consider.

1.3 **Delivery of Possession; Condition of Premises**. Lessor shall deliver possession of the Premises to Lessee on the Commencement Date, free of all interests of any third parties or other title encumbrances other than (i) those interests disclosed on Exhibit B attached hereto; (ii) any interests or acts of Lessee or anyone claiming or acting by, through or under Lessee, and (iii) any matters disclosed in the title insurance policy or title insurance commitment obtained by Lessee in connection with the execution and delivery of this Lease, which Lessee has accepted (collectively, the "**Permitted Exceptions**"). Lessee acknowledges Lessee is familiar with the physical condition of the Premises and the Environs, and except as otherwise provided in this Lease, Lessee acknowledges neither Lessor nor Lessor's Beneficiary, nor any of Lessor's or Lessor's Beneficiary's Affiliates, agents, employees, consultants or advisors has made any representation as to the condition thereof, and Lessee has taken possession of the Premises in an "as is" condition.

1.4 **Reservation of Lessor's Right to Make Future Dedications**. So long as such dedication would not adversely affect Lessee's ability to maintain the Project and its parking, Lessor reserves the right to make any dedications (a) to any appropriate Governmental Authority for the purposes of the widening of any existing public roads boarding on the Premises, if required by any Governmental Authority in connection with the Initial Project or any Added Component or Redevelopment Plan ("**Roadway Dedications**"), and (b) to any appropriate Governmental Authority or public utility company or communication or cable television provider, easements for public utilities (such as electric, natural gas, telephone and communications or cable television); provided, however, that no such dedication shall be made without Lessee's consent if the effect thereof would be to (i) require the modification of any then existing or required or planned storm water detention basins approved by Lessor or any of Lessee's signage located within the proposed areas to be dedicated, (ii) reduce the maximum number of Gross Square Feet Lessee is permitted to or has constructed on the Premises, (iii) reduce the number of parking spaces for the Project, or (iv) prohibit Lessee's use of the Premises for the purposes permitted under Section 6.1. If required by IDOT, any other Governmental Authority or title insurance company providing a title insurance policy or policies to any of Lessor, Lessee, a Leasehold Mortgagee or a Fee Mortgagee, Lessor and Lessee shall execute (and Lessee shall cause its Leasehold Mortgagee, if any, to execute) any amendments or other documents to this Lease or to the Short Form of Lease required or reasonably requested in connection with any such Roadway Dedications and conveyance to confirm that any portion or portions of the Land so dedicated or conveyed is no longer subject to this Lease or a part of the Premises. Lessor explicitly reserves the right to dedicate the bike path easement to the Village. Said bike path will be in the area generally depicted on Exhibit O attached hereto.

ARTICLE 2

Definitions

All capitalized terms used in this Lease shall have the definitions assigned to them in Exhibit C attached hereto.

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